

20STCV35842 20STCV35842

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Case Number: 20STCV35842 Hearing Date: August 28, 2026 Dept: 408

1.

Defendants

NBCUniversal Media LLC, Working Title Group LLC, Focus Features LLC, Douglas Management LTD, Gary Oldman, Douglas Urbanski, and Jim Osborne's Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED, in part, as to Issues Nos. 3, 4, 5, and 8; and GRANTED, in part, as to Issues Nos. 1, 2, 6, and 7.

2.

Defendants

NBCUniversal Media LLC, Working Title Group LLC, Focus Features LLC, Douglas Management LTD, Gary Oldman, Douglas Urbanski, and Jim Osborne's Motion to Seal Documents Lodged in support of Plaintiff's Opposition to Defendants' Motion for Summary Judgment is GRANTED.

3.

Defendants

NBCUniversal Media LLC, Working Title Group LLC, Focus Features LLC, Douglas Management LTD, Gary Oldman, Douglas Urbanski, and Jim Osborne's Motion to Seal Documents Lodged in support of Defendants' Reply to Motion for Summary Judgment is GRANTED.

I.

BACKGROUND

On

September 18, 2020, Plaintiff Ben Kaplan ("Plaintiff") filed a complaint against Defendants NBCUniversal Media, LLC ("NBC"), Working Title Group, LLC

("Working Title"), Focus Features LLC ("Focus"), Gary Oldman ("Oldman"), Douglas Urbanski ("Urbanski"), and Jim Osborne ("Osborne", collectively "Defendants") alleging causes of action for:

1.

False Designation
of Origin (15 U.S.C. § 1125(a));

2.

Breach of
Implied-in-Fact Contract;

3.

Unfair and
Unlawful Business Practices (Bus. & Prof. Code § 17200, et seq.);

4.

Intentional
Interference with Contractual Relations; and

5.

Intentional
Interference with Prospective Economic Relations.

On

October 13, 2020, Plaintiff filed an Amendment to the Complaint naming Does 11 and 12 as Douglas Management, Ltd. ("Douglas Management") and Douglas Management Group LLC, respectively.

On

March 12, 2021, Defendants filed an "Answer to Plaintiff's First Amended Complaint" when Plaintiff's First Amended Complaint had not yet been filed with the court.

On

April 13, 2021, Plaintiff filed a First Amended Complaint ("FAC") alleging cause of action for:

1.

Breach of

Joint Venture Agreement;

2.

Breach of

Implied-in-Fact Contract;

3.

Unfair and

Unlawful Business Practices (Bus. & Prof. Code § 17200, et seq.);

4.

Intentional

Interference with Contractual Relations;

5.

Intentional

Interference with Prospective Economic Relations;

6.

Breach of

Fiduciary Duty; and

7.

Aiding and

Abetting Breach of Fiduciary Duty.

On

June 18, 2021, the court denied Defendants' Special Motion to Strike under Code of Civil Procedure section 425.16 ("Anti-SLAPP Motion").

On

July 14, 2021, Defendants filed a Notice of Appeal regarding the denial of the Anti-SLAPP Motion.

On

August 31, 2021, the court granted Defendants' Motion for a Protective Order staying all causes of action pending appeal.

On November 3, 2023, the Court of Appeals affirmed the court's ruling denying Defendants' Anti-SLAPP Motion.

On

February 6, 2024, Defendant Douglas Management Group, LLC was dismissed without prejudice from Plaintiff's FAC.

On September 24, 2024, the court denied Defendants' Motion for Judgment on the Pleadings.

On February 20, 2025, the court denied Defendants' Motion for Leave to File a Renewed and Amended Anti-SLAPP Motion.

On November 24, 2025, Defendants filed this Motion for Summary Judgment, or alternatively, Summary Adjudication. On April 22, 2026, Plaintiff filed an opposition. On May 21, 2026, Defendants filed a reply.

On May 1, 2026, Defendants filed this Motion to Seal Documents Lodged in support of Plaintiff's Opposition to Defendants' Motion for Summary Judgment, or alternatively, Summary Adjudication. On May 21, 2026, Defendants filed this Motion to Seal Documents Lodged in support of Defendants' reply to Motion for Summary Judgment, or alternatively, Summary Adjudication. No opposition or other responsive pleading has been filed.

II.

MOTION

FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, SUMMAR ADJUDICATION

A.

Legal

Standard

"A

party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he

party moving for summary judgment bears the burden of persuasion that there is no triable issue of fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation omitted].)

"[T]he

party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Aguilar, supra, at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474, [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

"On

a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

"The

trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility. (Binder, supra, at p. 840, citations omitted; see also Weiss v. People ex rel. Dep't of Transp. (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

B.

Discussion

Defendants

seek summary judgment on all causes of action alleged in Plaintiff's FAC. Alternatively, Defendants move for summary adjudication of the following issues:

[Issue No. 1]

Plaintiff's first cause of action for

Breach of Joint Venture Agreement fails because:

a.

There was no

agreement between any Defendant and Plaintiff to share profits and losses related to the alleged joint venture;

b.

The parties

contemplated that any relationship would be formalized in a written executed writing, which never happened;

c.

Any relationship

discussed by the parties was that of employer/employee with a lack of joint control; and

d.

Plaintiff's

project failed to satisfy any of the necessary conditions for Oldman and Urbanski's participation.

[Issue No. 2]

Plaintiff's second cause of action

for Breach of Implied-in-Fact Contract fails because:

a.

There was no

promise by any Defendant to pay Plaintiff for his screenplay;

b.

Darkest Hour was independently created by Anthony McCarten without use of Plaintiff's screenplay; and

c.

Darkest Hour and Plaintiff's screenplay are not substantially similar.

[Issue No. 3]

Plaintiff's third cause of action for

Unfair and Unlawful Business Practices (Bus. & Prof. Code § 17200, et seq.)

fails because:

a.

The cause of

action is entirely predicated on Plaintiff's other claims, which all fail for the reasons stated above;

b.

The only relief

Plaintiff requests – injunctive relief and compensatory damages – are not available for this cause of action; and

c.

Plaintiff has

failed to provide any evidence demonstrating, or even allege that, Defendants Focus Features LLC and NBCUniversal Media, LLC engaged in any conduct constituting unfair competition.

[Issue No. 4]

Plaintiff's fourth cause of action

for Intentional Interference with Contractual Relations fails because:

a.

This claim is

premised on the alleged joint venture and, for the reasons stated above, no joint venture was formed as a matter of law; and

b.

Working Title

Group LLC, the only Defendant named in this cause of action, had no knowledge

of any consummated agreement between any Defendant and Plaintiff (which did not exist).

[Issue No. 5]

Plaintiff's fifth cause of action for

Intentional Interference with Prospective Economic Relations fails because Working Title Group LLC's conduct in making a competing offer for Oldman's and Urbanski's services was not tortious and was protected under the competition privilege, where there was no existing contractual relationship between either of these Defendants and Plaintiff.

[Issue No. 6]

Plaintiff's sixth cause of action for

Breach of Fiduciary Duty fails because the only alleged theory as to how any Defendant owed a fiduciary duty to Plaintiff is through the existence of a joint venture, which, for the reasons stated above, was not formed and did not exist as a matter of law.

[Issue No. 7]

Plaintiff's seventh cause of action

for Aiding and Abetting Breach of Fiduciary Duty fails because, for the reasons stated above, there was no fiduciary duty owed by any Defendant to Plaintiff and because Working Title Group, LLC, the only Defendant against whom this claim is asserted, was not aware of any fiduciary duty owed by any Defendant to Plaintiff.

[Issue No. 8]

Plaintiff's first cause of action for

Breach of Joint Venture Agreement, third cause of action for Unfair and Unlawful Business Practices (Bus. & Prof. Code § 17200, et seq.), fourth cause of action for Intentional Interference with Contractual Relations, fifth cause of action for Intentional Interference with Prospective Economic Relations, sixth cause of action for Breach of Fiduciary Duty, and seventh cause of action for Aiding and Abetting Breach of Fiduciary Duty additionally fail because each is barred by the applicable statute of limitation.

1.

Evidentiary Objections

2.

Request for Judicial Notice

Defendants' Request for Judicial Notice is granted. Judicial notice may be taken of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452, subd. (h).) However, "[t]aking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning." (Fremont Indemnity Co. v. Fremont Gen. Corp. (2007) 148 Cal.App.4th 97, 113 [internal quotes omitted]; see also Tenet Healthsystem Desert, Inc. v. Blue Cross of Calif. (2016) 245 Cal.App.4th 821, 836.)

3.

Issue No. 1 –

Breach of Joint Venture Agreement

"A joint venture is 'an undertaking by two or more persons jointly to carry out a single business enterprise for profit.' " (Weiner v. Fleischman (1991) 54 Cal.3d 476, 482; see also Replogle v. Ray (1941) 48 Cal.App.2d 291 [viewing breach of joint venture agreement as the same as breach of contract].) The elements necessary for the creation of a joint venture are: (1) joint interest in a common business; (2) with an understanding to share profits and losses; and (3) a right to joint control. (County of Riverside v. Loma Linda University (1981) 118 Cal.App.3d 300, 313; Holtz v. United Plumbing & Heating Co. (1957) 49 Cal.2d 501, 506-507.)

A joint venture agreement may be informal or oral. (Fitzgerald v. Provines (1951) 102 Cal.App.2d 529, 538.) Facts showing the joining of funds, property, or labor in a common purpose to attain a result for the benefit of the parties in which each has a right in some measure to direct the conduct of the other through a fiduciary relation that must exist, will justify a finding that a joint venture exists. (Id., at 537.)

"Whether a joint venture actually exists depends on the intention of the parties." (Unruh-Haxton v. Regents of University of California (2008) 162 Cal.App.4th 343, 370.) "[W]here evidence is in dispute the existence or nonexistence of a joint

venture is a question of fact to be determined by the jury.’ ” (Ibid. [citations omitted].)

Defendants argue that

Plaintiff’s breach of joint venture agreement claim premised on an alleged joint venture between Urbanski, Douglas Management, Osborne, and Plaintiff to create a feature film based on Winston Churchill with Oldman playing the titular character fails as there was no agreement to share profits and losses between the parties. (MSJ, at pp. 28-29.) In support, Defendants contend that Urbanski was offered fixed compensation for the role of producer in Plaintiff’s film, while Osborne was not offered any compensation from the purported joint venture, instead Osborne would be compensated through his normal commission as Oldman’s agent. (MSJ, at p. 29; Undisputed Material Fact (“UMF”), Nos. 32, 34.) The court finds that, based on such undisputed facts, Defendants met their initial burden of demonstrating that Plaintiff cannot establish the existence of a joint venture between the parties. The burden shifts to Plaintiff.

In opposition, Plaintiff

appears to concede that there was no “technical joint venture” but rather a relationship “akin” to a joint venture. (Opp., at pp. 21-26.) This in itself demonstrates that summary adjudication may be granted on the breach of joint venture agreement cause of action. Nevertheless, Plaintiff alternatively argues that as Oldman was to receive “profits” from his role in Plaintiff’s film, both Urbanski and Osborne were to earn their own profits from Oldman as his manager and agent, respectively. (Opp., at p. 28; Additional Undisputed Material Fact (“AMF”), No. 70.) The court finds such argument unpersuasive as the claim for breach of joint venture is not even asserted against Oldman and the mere possibility that Urbanski and Osborne were to receive compensation from their employment with Oldman is far too removed to raise a triable issue of fact as to whether there was an understanding between the parties to share the profits and losses of Plaintiff’s film to create a joint venture.

Accordingly, summary

adjudication is granted as to the first issue. The court declines to consider Defendants’ additional arguments regarding the first cause of action for breach of joint venture agreement.

4.

Issues Nos. 6

and 7 – Breach of Fiduciary Duty and Aiding and Abetting Breach of Fiduciary

Duty

Defendants argue that the sixth and seventh causes of action premised upon the existence of a fiduciary duty arising out of the purported joint venture between the parties fail for the reasons stated above. (MSJ, at pp. 33-34.)

In opposition, Plaintiff argues that the existence of a technical joint venture is not required to create a fiduciary duty as a relationship “akin” to a joint venture may support such derivative causes of action. (Opp., at pp. 21-26.)

The court notes that Plaintiff’s theories of liability as to the breach of fiduciary duty and aiding and abetting breach of fiduciary duty claims rely solely on the existence of a joint venture as alleged in the pleadings. (FAC, ¶¶ 97, 104.) Although a fiduciary relationship can in fact exist outside of a joint venture, Plaintiff fails to allege any alternative theories to support the fiduciary claims. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 [“The complaint limits the issues to be addressed at the motion for summary judgment[adjudication]. ‘Thus, a ‘defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.’ [Citation.]”].) Defendants are not obligated to address Plaintiff’s arguments regarding issues not found in the pleadings and first raised in opposition. Similarly, the court will not consider Plaintiff’s alternative theories in support of the sixth and seventh causes of action.

Because Plaintiff did not raise a triable issue as to whether a joint venture exists between the parties, the derivative claims based on fiduciary duties arising from such joint venture also fail.

As such, summary adjudication is granted on the sixth and seventh issues.

5.

Issue No. 4 –

Intentional Interference with Contractual Relations

The elements of a cause of action for intentional interference with contractual relations are “(1) a valid contract between plaintiff and a third party; (2) defendant’s knowledge

of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (I-CA Enterprises, Inc. v. Palram Americas, Inc. (2015) 235 Cal.App.4th 257, 289.)

Defendants argue that the intentional interference with contractual relations claim asserted against Working Title fails as there was no underlying contract between Plaintiff, Oldman, and Urbanski and Working Title had no knowledge of any agreement between the parties. (MSJ, at pp. 34-35.)

The fourth cause of action is premised upon alleged implied contracts between Plaintiff and Oldman for Oldman to play the lead role in Plaintiff's film and between Plaintiff and Urbanski for Urbanski to receive a producer credit in Plaintiff's film in exchange for Urbanski's support in developing the film. (FAC, ¶¶ 80-81.)

In support, Defendants contend that the evidence demonstrates that such agreements do not exist. (MSJ, at p. 34.) Defendants also provide that, based on Plaintiff's discovery responses, the fourth cause of action is premised upon the existence of the alleged joint venture and fails for the same reasons set forth above. (Id.; Defendants' COE, No. 1586.) Defendants further provide that Working Title had no knowledge of any consummated agreement between Urbanski or Oldman and Plaintiff as there was none because only offers were made to participate in Plaintiff's film. (MSJ, at p. 35.)

The court finds that Defendants failed to carry their initial burden of demonstrating that there was no valid implied agreements between Plaintiff, Oldman, and Urbanski and that Working Title lacked knowledge of such implied contracts.

Although the fourth cause of action would fail if solely based on the purported joint venture between the parties as seen above, Plaintiff asserts the claim based on implied contracts with Oldman and Urbanski for their participation in Plaintiff's film. The existence and terms of an implied contract are manifested by conduct. (Civ. Code, § 1621.) Thus, an implied agreement may be established by the acts and conduct of the parties and all the circumstances of the case. (Silva v.

Providence Hospital of Oakland (1939) 14 Cal.2d 762, 774-775; Gunther-Wahl Productions, Inc. v. Mattel, Inc. (2002) 104 Cal.App.4th 27, 39; Peterson Development Co. v. Torrey Pines Bank (1991) 233 Cal.App.3d 103, 113.) The court finds a factual dispute whether the conduct of Defendants demonstrated the existence of an implied agreement through their conduct and communications with Plaintiff and third parties of an agreement to participate in Plaintiff's film or as merely part of the "negotiating process". (UMF, Nos. 36; AMF, Nos. 68-69, 73-75, 80-83.)

Moreover, the fact that there is no signed written agreement does not preclude the finding of an existence of a contract, the terms of which may have been orally agreed upon by the parties. (Schwartz v. Shapiro (1964) 229 Cal.App.2d 238, 247-248 [parties may engage in preliminary negotiations, oral or written, in order to reach an agreement and these negotiations ordinarily result in a binding contract, depending on the intention of the parties to be determined by surrounding facts and circumstances, when all of the terms are definitely understood, even though parties intend that formal writing embodying these terms shall be executed later].)

It is also disputed whether Working Title had knowledge of the parties' implied contract based on multiple communications with Urbanski. (UMF, Nos. 54-55; AMF, Nos. 56-57, 74-76, 89-93.)

Accordingly, summary adjudication is denied as to the fourth issue.

6.

Issue No. 5 –

Intentional Interference with Prospective Economic Relations

The elements of a claim

for intentional interference with prospective economic advantage include "(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional or negligent acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." (Crown Imports, LLC v. Superior Court (2014) 223 Cal.App.4th 1395, 1404 [citations, brackets, and quotation marks omitted].) Further, "the alleged interference must have been wrongful by some measure

beyond the fact of the interference itself. For an act to be sufficiently independently wrongful, it must be unlawful, that is, it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard.” (Ibid. [citation, ellipsis, and quotation marks omitted].)

“Under the privilege of free competition, a competitor is free to divert business to himself as long as he uses fair and reasonable means.” (Tri-Growth Centre City, Ltd. v. Silldorf, Burdman, Duignan & Eisenberg (1989) 216 Cal.App.3d 1139, 1153.) “[T]he competition privilege is defeated only where the defendant engages in unlawful or illegitimate means.” (San Francisco Design Center Associates v. Portman Companies (1995) 41 Cal.App.4th 29, 42.)

Defendants argue that as no agreement exists between Plaintiff, Oldman, and Urbanski exists and a competing offer to Oldman to participate in another film is protected by the competition privilege, the fifth cause of action for intentional interference with prospective economic relations asserted against Working Title fails. (MSJ, at pp. 35-36.)

The court finds that a triable issue of fact exists as to whether an economic relationship exists between Plaintiff, Oldman, and Urbanski for the same reasons stated above. Moreover, it is disputed whether Working Title used confidential information to make a competing offer to Oldman to play the role of Churchill in its own film placing the applicability of the competition privilege at issue. (UMF, No. 24; AMF, Nos. 56, 77, 86, 89, 93.)

Accordingly, summary adjudication is denied as to the fifth issue.

7.

Issue No. 2 –

Breach of Implied-in-Fact
Contract

“[T]o prevail on a cause of action for breach of implied-in-fact contract, plaintiffs must show (1) they clearly conditioned the submission of their ideas on an obligation to pay for any use of their ideas; (2) the defendants, knowing this condition before the plaintiffs disclosed the ideas, voluntarily accepted the submission

of the ideas; and (3) the defendants found the ideas valuable and actually used them—that is, the defendants based their work substantially on the plaintiffs' ideas, rather than on their own ideas or ideas from other sources." (*Spinner v. American Broadcasting Companies, Inc.* (2013) 215 Cal.App.4th 172, 184.) "When plaintiffs do not have direct evidence of use, they may raise an inference of use by showing the defendants had access to their ideas and the defendants' work is substantially similar to the plaintiffs' ideas." (*Id.*, at 184-185.)

"Even when the plaintiffs raise an inference of use, however, the defendants may dispel that inference with evidence that conclusively demonstrates the defendants independently created their product." (*Id.*, at 185.) "When the defendants produce evidence of independent creation that is " 'clear, positive, uncontradicted and of such a nature that it cannot rationally be disbelieved,' " the inference of use is dispelled as a matter of law." (*Id.*, citing *Hollywood Screentest of America, Inc. v. NBC Universal, Inc.* (2007) 151 Cal.App.4th 631, 648.)

"[A]n obligation to pay could not be inferred from the mere fact of submission on a theory that everyone knows that the idea man expects to be paid." (*Faris v. Enberg* (1979) 97 Cal.App.3d 309, 319.) "The idea man who blurts out his idea without having first made his bargain has no one but himself to blame for the loss of his bargaining power. The law will not in any event, from demands stated subsequent to the unconditioned disclosure of an abstract idea, imply a promise to pay for the idea, for its use, or for its previous disclosure. The law will not imply a promise to pay for an idea from the mere facts that the idea has been conveyed, is valuable, and has been used for profit; this is true even though the conveyance has been made with the hope or expectation that some obligation will ensue." (*Desny v. Wilder* (1956) 46 Cal.2d 715, 739.)

Defendants argue that Plaintiff cannot establish that any submissions of his script to Defendants were made to sell the project to support a claim for breach of implied-in-fact contract. (MSJ, at pp. 37-39.) In support, Defendants provide undisputed evidence that, in February 2012, Plaintiff entered into an "Option and Purchase Agreement" with Lila 9th Productions, LLC ("Lila 9th") granting Lila 9th the "exclusive and

irrevocable option” to purchase the rights to Plaintiff’s script. (UMF, No. 3.) Defendants also provide undisputed evidence that none of Plaintiff’s submission of his script contained any condition that Plaintiff receive compensation in return and were instead made for the purpose of facilitating an agreement for Oldman and Urbanski to join Plaintiff’s project. (Id., Nos. 14, 20, 25.) Lastly, Defendants provide that, in August 2013, Plaintiff’s agent, Melissa Wells, submitted Plaintiff’s script to Lucas Webb at Working Title as a writing sample in an effort to find future writing work for Plaintiff. (Id., No. 17.)

The court finds that, based on such undisputed facts, Defendants met their initial burden of demonstrating that Plaintiff cannot establish that he conditioned the submission of his script on any obligation to pay for its use. In fact, Plaintiff could not have conditioned the submission of his script on an obligation to pay as Lila 9th had the exclusive option to purchase. (Id., No. 3.) The burden shifts to Plaintiff.

In opposition, Plaintiff fails to raise a triable issue of fact regarding the existence of a promise to pay in exchange for his script. (Opp., at pp. 34.) As such, the cause of action for breach of implied-in-fact contract fails.

Accordingly, summary adjudication is granted as to the second issue. The court declines to consider Defendants’ additional arguments regarding the second cause of action.

8.
Issue No. 3 –
Unfair and Unlawful
Business Practices

To set forth a claim for a violation of Business and Professions Code section 17200 (“UCL”), a plaintiff must establish that defendant was engaged in an “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” and certain specific acts. (Bus. & Prof. Code, § 17200.)

Defendants argue that as Plaintiff’s unfair competition claim is entirely predicated on

his other causes of action, the claim similarly fails for the reasons presented above. (MSJ, at pp. 48-49.)

The court notes that the third cause of action is premised upon Defendants' alleged misappropriation of Plaintiff's script, tortious interference with Plaintiff's development of his film, and breach of fiduciary duties allegedly owed to Plaintiff. (FAC, ¶ 73.) As summary adjudication was denied on the fourth and fifth causes of action for intentional interference with contractual relations and intentional interference with prospective economic advantage, the court cannot dispose of the entirety of the third cause of action. (*McCaskey v. California State Automobile Assn.* (2010) 189 Cal. App. 4th 947, 975 ["there can be no summary adjudication of less than an entire cause of action."] citing Code Civ. Proc., § 437c, subd. (f)(1) ["A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty."].)

Accordingly, summary adjudication is denied as to the third issue. (Id. ["If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered."].)

9.

Issue No. 8 –
Statute of Limitations

Defendants argue that Plaintiff's first cause of action for breach of joint venture agreement, third cause of action for unfair and unlawful business practices, fourth cause of action for intentional interference with contractual relations, fifth cause of action for intentional interference with prospective economic relations, sixth cause of action for breach of fiduciary duty, and seventh cause of action for aiding and abetting breach of fiduciary duty are barred by the statute of limitations. (MSJ, at p. 49-50.)

The court notes that summary adjudication was granted as to the claims for breach of joint venture agreement, breach of fiduciary duty, and aiding and abetting breach of fiduciary duty on independent grounds as found above. As such, the court will only consider Defendants' statute of

limitations arguments regarding the remaining causes of action for unfair and unlawful business practices, intentional interference with contractual relations, and intentional interference with prospective economic relations.

Defendants

contend that a two-year statute of limitations applies to the intentional interference with contractual relations and prospective economic relations claims under Code of Civil Procedure section 339. (Ibid.) Defendants further argue that such claims are time-barred because, in 2015, Plaintiff knew that Oldman and his team rejected Plaintiff's film project and, in August 2017, Plaintiff knew that Working Title had hired Oldman to star as Churchill in the Darkest Hour project. (UMF, Nos. 38, 45, 65-68.) Defendants also argue that the unfair competition claim is subject to a four-year statute of limitations and it is time-barred as Plaintiff alleges that Oldman abandoned Plaintiff's film project and that Working Title's alleged conduct occurred in 2015. (MSJ, at p. 50.)

"[T]he statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong." (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110.)

"[O]nce the plaintiff becomes aware of facts which would make a reasonably prudent person suspicious, the duty to investigate arises and the plaintiff may be charged with the knowledge of facts which would have been discovered by such an investigation." (Bedolla v. Logan & Frazer (1975) 52 Cal.App.3d 118, 131.)

Resolution of statute of limitations is a question of fact. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 810.) Whether a plaintiff exercised reasonable diligence is generally a question of fact precluding summary judgment. (Sylve v. Riley (1993) 15 Cal.App.4th 23, 26.)

The court finds that

Defendants failed to carry their initial burden in demonstrating that Plaintiff's remaining causes of action are time barred. The court notes that it is disputed whether Plaintiff saw the marketing materials for the Darkest Hour project when released or that Plaintiff had knowledge of Oldman casting in the Darkest Hour project when publicly announced. (UMF, Nos. 38, 65-67.) There is also no indication that Plaintiff was aware of whether Working Title

knew of Plaintiff's contractual relationships with Oldman and Urbanski at the time Working Title negotiated the Darkest Hour project before 2017. Moreover, a triable issue of fact remains as to whether Plaintiff became aware of the facts giving rise to the instant action only after Plaintiff actually saw the Darkest Hour film in January 2018. (Id., No. 70.)

Accordingly, summary adjudication is denied as to the eighth issue.

III.

MOTION

TO SEAL DOCUMENTS LODGED IN SUPPORT OF PLAINTIFF'S OPPOSITION

A.

Legal

Standard

Unless confidentiality is required by law, court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550, subd. (c).) Consequently, pleadings, motions, evidence, and other papers may not be filed under seal merely by stipulation of the parties; rather, a prior court order is necessary. (Cal. Rules of Court, rule 2.551, subd. (a).) To grant such an order, the court must expressly find that "an overriding interest exists that overcomes the right of public access to the record, an overriding interest supports sealing the records, a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, the proposed sealing is narrowly tailored, and no less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550, subd. (d).)

B.

Discussion

Defendants

request that the court seal specific documents lodged in support of Plaintiff's opposition to Defendants' Motion for Summary Judgment, or alternatively, Summary Adjudication, as follows:

1.

Redacted portions

of Plaintiff's opposition to Defendants' Motion for Summary Judgment, or

alternatively, Summary Adjudication, specifically, Page(s):Line(s) 9:6-11, 9:12, 10:23-24, 11:11, 11:13, 17:11, 18:13-18, 18:21- 24, 18:26-27, 29:17, 30:2-5, 31:3, 31:6-16, 31:17-18, 31:19-20, and 31:25-26:

2.

Exhibit 21 to
Plaintiff's Compendium of Evidence in opposition to Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication;

3.

Exhibit 25 to
Plaintiff's Compendium of Evidence;

4.

Exhibit 27 to
Plaintiff's Compendium of Evidence;

5.

Exhibit 28 to
Plaintiff's Compendium of Evidence;

6.

Exhibit 30 to
Plaintiff's Compendium of Evidence;

7.

Portions of
Plaintiff's Separate Statement of Undisputed Facts in opposition to Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication, specifically, Page(s):Line(s) 9:24-26, 11:8-13, 19:16-18, 97:13-15, 98:25-99:4, 266:6-8, 267:18-23, 353:19-21, 355:5-11, 369:19-21, 371:5-11, 385:19-21, 387:5-11, 401:19-21, 403:5-11, 433:24-26, 436:11-18, 436:23-28, and 437:5-9;

8.

Exhibit 21 to
Plaintiff's Corrected Compendium of Evidence in opposition to Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication;

9.

Exhibit 25 to

Plaintiff's Corrected Compendium of Evidence;

10.

Exhibit 27 to

Plaintiff's Corrected Compendium of Evidence;

11.

Exhibit 28 to

Plaintiff's Corrected Compendium of Evidence;

12.

Exhibit 30 to

Plaintiff's Corrected Compendium of Evidence; and

13.

Redacted portions

of Plaintiff's Corrected Separate Statement of Undisputed Facts in opposition to Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication, specifically, Page(s):Line(s) 9:26-28, 11:10-12, 11:13-15, 20:7-9, 434:24, 437:14-22, 436:27-438:5, and 438:9-12.

Defendants contend that the confidential materials sought to be sealed were designated as confidential by the parties pursuant to the Stipulation and Protective Order entered on February 29, 2024, as such materials confidential and sensitive business, commercial, and/or financial information. (Motion, at pp. 4-5.)

The

court finds there is an overriding interest in the protection of confidential information regarding Defendants' business sensitive information which are already subject to a protective order. The court also finds that there is a substantial probability that interest will be prejudiced if the record is not sealed and that there is no less restrictive means to protect the overriding interest. The court further notes that Plaintiff does not oppose the motion. (Cal. R. Ct., 8.54(c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the motion is granted.

IV.

MOTION

TO SEAL DOCUMENTS LODGED IN SUPPORT OF DEFENDANTS' REPLY

A.

Legal

Standard

See

III.A., above.

B.

Discussion

Defendants

request that the court seal specific documents lodged in support of Defendants' reply to their Motion for Summary Judgment, or alternatively, Summary Adjudication, as follows:

1.

Portions of

footnotes 6 and 8 on page 13, lines 18:10-13, and lines 23:1-3 of Defendants' reply; and

2.

Portions of

Defendants' Separate Statement of Undisputed Material Facts 28 and 31 (throughout); Plaintiff's Response to Undisputed Material Facts 31 and 54; Plaintiff's Additional Material Facts 80, 90, 91, and 92; and Defendants' Response to Plaintiff's Additional Material Facts 80, 90, 91, 92, and 110.

Defendants contend that the confidential materials

sought to be sealed were designated as confidential by the parties pursuant to the Stipulation and Protective Order entered on February 29, 2024, as such materials confidential and sensitive business, commercial, and/or financial information. (Motion, at p. 5.)

The

motion is granted for the same reasons stated above.

V.

CONCLUSION

1. Defendants NBCUniversal Media LLC, Working Title Group LLC, Focus Features LLC, Douglas Management LTD, Gary Oldman, Douglas Urbanski, and Jim Osborne's Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED, in part, as to Issues Nos. 3, 4, 5, and 8; and GRANTED, in part, as to Issues Nos. 1, 2, 6, and 7.

2. Defendants NBCUniversal Media LLC, Working Title Group LLC, Focus Features LLC, Douglas Management LTD, Gary Oldman, Douglas Urbanski, and Jim Osborne's Motion to Seal Documents Lodged in support of Plaintiff's Opposition to Defendants' Motion for Summary Judgment is GRANTED.

3. Defendants NBCUniversal Media LLC, Working Title Group LLC, Focus Features LLC, Douglas Management LTD, Gary Oldman, Douglas Urbanski, and Jim Osborne's Motion to Seal Documents Lodged in support of Defendants' Reply to Motion for Summary Judgment is GRANTED.